

Opinion of the Court

(Scalia, J., dissenting) (“If the same conduct violates two (or more) laws, then each offense may be separately prosecuted”); *Moore v. Illinois*, 14 How. 13, 17 (1852) (“The constitutional provision is not, that no person shall be subject, for the same act, to be twice put in jeopardy of life or limb; but for the same *offence*, the same *violation of law*, no person’s life or limb shall be twice put in jeopardy” (emphasis added)).

Faced with this reading, Gamble falls back on an episode from the Double Jeopardy Clause’s drafting history.² The first Congress, working on an earlier draft that would have banned “‘more than one trial or one punishment for the same offence,’” voted down a proposal to add “‘by any law of the United States.’” 1 *Annals of Cong.* 753 (1789). In rejecting this addition, Gamble surmises, Congress must have intended to bar successive prosecutions regardless of the sovereign bringing the charge.

Even if that inference were justified—something that the Government disputes—it would count for little. The private intent behind a drafter’s rejection of one version of a text is shoddy evidence of the public meaning of an altogether different text. Cf. *United States v. Craft*, 535 U.S. 274, 287 (2002) (“[F]ailed legislative proposals are a particularly dangerous ground on which to rest an interpretation of a prior statute” (internal quotation marks omitted)).

Besides, if we allowed conjectures about purpose to inform our reading of the text, the Government’s conjecture would prevail. The Government notes that the Declaration of In-

²Gamble also cites founding-era uses of the word “offence” that are *not* tied to violations of a sovereign’s laws, but the examples are not very telling. Some, for instance, play on the unremarkable fact that at the founding, “offence” could take on a different sense in nonlegal settings, much as “offense” does today. In this vein, Gamble cites a 19th-century dictionary defining “offense” broadly as “any transgression of law, divine or human; a crime; sin; act of wickedness or omission of duty.” 2 N. Webster, *An American Dictionary of the English Language* (1828). But the question is what “offence” meant in legal contexts. See *Moore v. Illinois*, 14 How. 13, 19 (1852) (“An offence, *in its legal signification*, means the transgression of a law” (emphasis added)).